

SENATE No. 1455

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the use of certain fairground properties.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/13/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>2/13/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>3/17/2025</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>3/18/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>3/25/2025</i>

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By Ms. Lovely, a petition (accompanied by bill, Senate, No. 1455) of Joan B. Lovely, Joanne M. Comerford and Steven S. Howitt for legislation relative the management of specific pieces of land or structures typically found at a fairground, often referring to regulations, permissions, or restrictions regarding their operation within a particular area. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the use of certain fairground properties.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of chapter 40A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the first sentence of the second paragraph
3 the following sentence:-

4 Nor shall any zoning ordinance or by-law prohibit, regulate or restrict the use of land or
5 structures dedicated in whole or in part to periodic operation of an agricultural fair, provided that
6 such land or structures are owned and such activity conducted by a nonprofit corporation
7 established for such purpose, and further provided that any use of such land or structures is in
8 furtherance of such nonprofit corporation's purpose.

9 SECTION 2. This act shall take effect upon its passage.